

SENATE BILL 1368

By Watson

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-4-902, is amended by deleting subdivision (33)(B) and substituting instead the following:

(B) Culminates in an industry certification, registered apprenticeship, occupational licensure, or certificate, but does not include participation in, or completion of, a program of professional development, continuing education, exam preparation, or similar objectives;

SECTION 2. Tennessee Code Annotated, Section 49-7-154, is amended by deleting the section and substituting instead the following:

(a) Notwithstanding any law to the contrary, an application for a position of chief executive officer of a public institution of higher education, materials submitted with an application, letters of recommendation or references concerning an applicant, and any other records or information relating to or arising out of the process of searching for and selecting an individual for a position of chief executive officer of a public institution of higher education must be treated as confidential and are not open for public inspection, if the records could be used to identify a candidate for the position; provided, however, that after a search committee has selected candidates as finalists for a position of chief executive officer of a public institution of higher education, which must occur no later than fifteen (15) calendar days before the final vote of the governing board or commission to appoint or elect a person to fill the position, a record relating exclusively

to the candidates selected as finalists is not confidential and must be open for public inspection, except for a record otherwise confidential under state or federal law. This section does not apply to information relating to a candidate who did not expressly request that the candidate's information be kept confidential.

(b) As used in this section:

(1) "Chief executive officer of a public institution of higher education"

includes:

(A) The president of the University of Tennessee system;

(B) The chancellor of the state university and community college system;

(C) A chancellor of a University of Tennessee campus or institute;

(D) A president or director of an institution of the state university and community college system; and

(E) The executive director of the Tennessee higher education commission; and

(2) "Finalists" means no fewer than three (3) candidates selected by a search committee as the group from which one (1) or more candidates must be recommended to the governing board or commission.

(c)

(1) Notwithstanding subsections (a) and (b), a search committee may select up to three (3) candidates to be recommended to the governing board or commission for the following positions:

(A) A president of a locally governed state university;

(B) The president of the University of Tennessee system;

(C) A chancellor of a University of Tennessee campus or institute;

- (D) The chancellor of the Tennessee board of regents;
- (E) A president of a community college;
- (F) A president or director of a Tennessee college of applied technology; or
- (G) The executive director of the Tennessee higher education commission.

(2) Prior to initiating a search to fill a position listed in subdivision (c)(1), the governing board or commission must hold a meeting that is open to the public and subject to the requirements of title 8, chapter 44, part 1, to establish the search process, a timeline, and a statement of qualifications for the position.

(3) No later than fifteen (15) calendar days before the final vote of the governing board or commission to appoint or elect a person to fill a position listed in subdivision (c)(1), records relating exclusively to the candidates identified pursuant to subdivision (c)(1) must not be treated as confidential and are open for public inspection, except for a record otherwise confidential under state or federal law.

(4) No later than seven (7) calendar days before a meeting at which the governing board or commission will vote to appoint or approve the appointment of a candidate to fill a position listed in subdivision (c)(1), the governing board or commission shall hold at least one (1) public forum with the candidate.

(5) A meeting at which the governing board or commission will vote to appoint or approve the appointment of an individual to fill a position identified in subdivision (c)(1) must be open to the public and subject to the requirements of title 8, chapter 44, part 1.

SECTION 3. Tennessee Code Annotated, Section 49-7-202(c), is amended by adding the following as a new subdivision:

() Develop and evaluate postsecondary access and career readiness initiatives across the state to advise Tennesseans of affordable opportunities for education and training, skill development, and credential attainment in alignment with this state's education and workforce needs.

SECTION 4. Tennessee Code Annotated, Section 49-7-202(i), is amended by deleting the subsection and substituting instead the following:

(i) Before any amendment or revision to the outcomes-based funding formula model becomes effective, the amendment or revision must be submitted for review and recommendation to the education and finance, ways and means committees of the senate and the committees of the house of representatives having jurisdiction over higher education and annual state appropriations.

SECTION 5. Tennessee Code Annotated, Section 49-7-202(n), is amended by deleting the subsection and substituting instead the following:

(n)

(1) The commission shall annually review tuition and other institutional fees charged to students attending state institutions of higher education.

(2)

(A) Following the review described in subdivision (n)(1), the commission shall annually approve a maximum allowable tuition and fee increase policy binding upon all public institutions of higher education.

(B) Notwithstanding subdivision (n)(2)(A), the commission may approve separate maximum allowable tuition and fee increases for one (1) or more public institutions of higher education that differ from the tuition and fee policy approved

pursuant to subdivision (n)(2)(A) if the commission determines that a separate tuition and fee policy for an institution is necessary based on the circumstances or needs of the respective institution.

(C) A maximum allowable tuition and fee increase approved by the commission must only apply to tuition and fees charged to undergraduate students classified as Tennessee residents, commonly referred to as in-state tuition or maintenance fees.

(3) A tuition and fee policy approved by the commission must include two (2) approved maximum increases:

(A) One (1) maximum increase for any proposed modification to the current tuition rates; and

(B) One (1) maximum increase for any proposed modification to the combined total amount of tuition and all mandatory fees assessed.

(4) An institution may adopt tuition and fee adjustments, but shall not exceed the maximum increase approved by the commission in the applicable tuition and fee policy.

(5) Tuition-setting authority for undergraduate students not classified as Tennessee residents and all graduate-level students is the sole responsibility of the respective institution's governing board.

(6) Nothing in this subsection (n) prohibits institutions from reducing the total tuition and fees charged to students.

(7) Notwithstanding this subsection (n), no change in tuition or fee policy may be made that, in the opinion of the board of regents, might adversely affect compliance with, or future borrowings pursuant to, financing agreements with the Tennessee state school bond authority.

SECTION 6. Tennessee Code Annotated, Section 49-7-202(o), is amended by deleting the subsection and substituting instead the following:

(o) The commission shall establish a formal process, consistent with § 49-7-1002, for identifying capital investment needs for consideration by the governor and the general assembly as part of the annual appropriations act.

SECTION 7. Tennessee Code Annotated, Section 49-7-202(q)(2)(A), is amended by adding the following language at the end of the subdivision:

The commission may delegate some or all of its approval powers in this subdivision (q)(2) to its executive director. The commission shall develop policies and procedures governing the process outlined in this subdivision (q)(2).

SECTION 8. Tennessee Code Annotated, Section 49-7-202(q), is amended by deleting subdivision (3) and substituting instead the following:

(3) The commission shall review and approve or disapprove all proposals by any existing higher education institution to establish a physical presence at any location other than its main campus, to extend an existing location that will be utilized for administrative purposes, or to offer courses for which academic credit is offered. If the new location will create or expand a physical presence outside of this state, then the higher education institution shall, through its governing board, file with the commission a notice of intent to initiate out-of-state instructional activity prior to the development of the proposal. The commission shall, no later than February 15 of each year, report to the chairs of the fiscal review committee, the education committee of the senate, and the committee of the house of representatives having jurisdiction over higher education of any such notices filed in the previous year and the status of that application. The commission may delegate its approval powers in this subdivision (q)(3) to its executive director. The commission shall develop policies and procedures governing the process

outlined in this subdivision (q)(3). This subdivision (q)(3) also applies to state colleges of applied technology.

SECTION 9. Tennessee Code Annotated, Section 49-7-214, is amended by deleting the section.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.